

## 25STCV32669 25STCV32669

County: los-angeles

Division: Civil Law and Motion

Department: 311

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Case Number: 25STCV32669 Hearing Date: June 23, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311 (formerly 19)

Tentative

Ruling

25STCV32669

JOSEPH

LAKE vs VIKING INSURANCE COMPANY OF WISCONSIN, et al.

June

23, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF'S MOTION FOR SUMMARY ADJUDICATION.

RULING:

The Court sustains

Defendants' evidentiary objections filed on June 11, 2026.

The Court denies the Motion.

I.

BACKGROUND

On November 10, 2025, JOSEPH

LAKE (Plaintiff) filed a Complaint against VIKING INSURANCE COMPANY OF

WISCONSIN and DAIRYLAND INSURANCE COMPANY dba SENTRY INSURANCE COMPANY

(Defendants), listing Causes of Action for:

1.

DECLARATORY RELIEF (CODE CIV. PROC. §1060);

2.

RESCISSION (CIV. CODE §§1689–1691);

3.

RESTITUTION / EQUITABLE RELIEF.

Plaintiff alleges that he

qualifies for rescission and declaratory relief concerning a \$15,000.00

settlement with "Release of All Claims", related to an automobile collision, because,

"Plaintiff executed a release that—unbeknownst to him—purported to discharge

both Viking's named insured, Abraham Lorenzo, and the separately insured

driver, Rivas", who had a separate insurance policy. (Complaint, ¶ 3.)

On April 1, 2026, Plaintiff

filed the Motion for Summary Adjudication of Issues, about rescission of the

alleged settlement agreement, based upon Defendant's misrepresentation or the

Plaintiff's mistake.

Defendants oppose, based upon

counterarguments made on the merits, such as that there was no

misrepresentation or cognizable mistake, where Plaintiff read the agreement

expressly releasing both insureds. They

also object to notice being two days short before the hearing. (Opposition, 2:3-8.)

But objections to defects in motion service are waived where an opposition was

filed or argued, addressing the merits. (In

re Marriage of Falcone and Fyke (2008) 164 Cal.App.4th 814, 826; Reedy v. Bussell (2007) 148 Cal.App.4th

1272, 1289; Arambula v. Union Carbide

Corp. (2005) 128 Cal.App.4th 333, 342; Carlton

v. Quint (2000) 77 Cal.App.4th 690, 697.)

II.

## LEGAL STANDARD

Legislative intent

is that an issue shall be worded so as to dispose of an entire cause of action

or defense (*Nazir v. United Airlines, Inc.*

(2009) 178 Cal.App.4th 243, 249.) A court cannot adjudicate any issue except

those precisely stated in the notice. (E.g., *Gonzales v. Superior Court* (1987) 189 Cal.App.3d 1542, 1546; *Maryland Cas. Co. v. Reeder* (1990) 221

Cal.App.3d 961, 974, n.3.)

Plaintiffs may shift

the burden of proof to the opposition by submitting evidence as to every

element of the cause of action. (Code Civ. Proc., § 437c, subd. (p)(1); *WRI Opportunity Loans II, LLC v. Cooper* (2007)

154 Cal.App.4th 525, 532.)

III.

## ANALYSIS

Plaintiff summarizes the

bases for rescission of the release agreement, as follows: “Prior to execution

of the Release, Defendant affirmatively and repeatedly distinguished between

Abraham Lorenzo as the “insured” and Roberto Sanchez Rivas as an ‘insured

driver.’ At the same time, Defendant’s communications expressly reflected that

Rivas maintained separate insurance coverage. These representations created a

reasonable understanding that the settlement being offered was limited to the

Viking policy issued to Lorenzo.” (Motion, 4:1-5.)

Defendants reason that

there was no misrepresentation or cognizable mistake, because: “Before signing

the Release, Plaintiff was aware Rivas may have had separate insurance

coverage, received a letter identifying that coverage, read the Release that

explicitly named Rivas as a released party, and signed voluntarily while

represented by counsel.” (Opposition, 1:18-20.)

Plaintiff’s Reply seeks

to bolster the Motion based upon adding a supplemental Separate Statement and

Declaration, to which Defendants filed evidentiary objections on June 11, 2026.

The elements of the Causes of Action for Rescission are these:

Consent of the

party rescinding or of any jointly contracting party given or obtained by

or through:

mistake;

1.

material to the contract;

2.

not the result of neglect of a legal

duty;

3.

enforcement of the contract as made

would be unconscionable;

4.

other party can be placed in status

quo;

5.

party seeking relief gives prompt

notice of his election to rescind; and

6.

party restores or offers to restore to

other party everything of value received under contract;

duress;

menace;

fraud; or

undue influence; and

exercised by or

with the connivance of the party as to whom the party rescinds, or of any

other party to the contract jointly interested with such party.

(Civ. Code, § 1689; White v. Berrenda

Mesa Water Dist. (1970) 7 Cal.App.3d 894, 901 [addressing mistake elements]. See also Grenall v. United of Omaha Life Ins. Co. (2008) 165 Cal.App.4th

188, 193 ["A contracting party bears the risk of a mistake when the agreement so provides or when the party is aware

of having only limited knowledge of the facts relating to the mistake but

treats this limited knowledge as sufficient."]; Donovan v. RRL Corp. (2001) 26 Cal.4th 261, 283 ["the risk of a mistake must be allocated to a party

where the mistake results from that party's neglect of a legal duty."]; San Diego Hospice v. County of San Diego

(1995) 31 Cal.App.4th 1048, 1055 ["A party seeking rescission based on

fraudulent nondisclosure must show (1) the defendant failed to disclose a

material fact which he knew or believed to be true, and (2) the defendant had a

duty to disclose that fact.... The duty to disclose arises when two elements are

present: (1) the material fact is known to (or accessible only to) the defendant;

and (2) the defendant knows the plaintiff is unaware of the fact and cannot

reasonably discover the undisclosed fact."].)

Preliminarily, the

Court disregards the untimely Separate Statement and Declaration, which deprive

Defendants of an opportunity to respond to them. "The [summary judgment] reply

shall not include any new evidentiary matter, additional material facts, or

separate statement submitted with the reply and not presented in the moving

papers or opposing papers." (Code Civ. Proc., § 437c, subd. (a)(4).)

Alternatively, the

Court considers the late documents, and reasons that they do not change the analysis on the merits.

First, that

Defendant, “repeatedly distinguished between Abraham Lorenzo as the ‘insured’

and Roberto Sanchez Rivas as an ‘insured driver’ in its communications with

Plaintiff’s counsel” (Separate Statement, fact number 11), is not any

misrepresentation or nondisclosed fact concerning the scope of the release. “To

be ‘material’ for purposes of a summary judgment proceeding, a fact must relate

to some claim or defense in issue under the pleadings, and it must also be

essential to the judgment in some way.” (Riverside

County Cmty. Facilities Dist. v. Bainbridge 17 (1999) 77 Cal.App.4th 644,

653.) The law applying to the pled legal theories determines materiality in

summary judgment motions. (Panattoni v.

Superior Court (1988) 203 Cal.App.3d 1092, 1094.)

Second, Plaintiff’s misunderstanding that the settlement was limited to

the Viking policy issued to Lorenzo, is not a cognizable mistake, because it

entails neglect of a legal duty to read the signed contract, expressly and

clearly stating that both insureds, and their insurers, were being released, as

follows: “release Viking Insurance Company of Wisconsin, ABRAHAM LORENZO



CORTIZO, ROBERTO SANCHEZ RIVAS, their subsidiaries, affiliates,  
stockholders, officers, directors, employees, agents, insurers,  
attorneys, predecessors, heirs, successors, and assigns, from any and all  
claims and damages as a result of an accident on and or about December 24, 2024  
at or near GLENDALE BLVD, LOS ANGELES, CA.” (Motion, Exhibit A, 1st Para.)

(Underscoring added.) A party’s subjective understanding is not admissible to  
contradict express terms in a written contract. (Sunniland Fruit, Inc. v. Verni (1991) 233 Cal.App.3d 892, 898.)

Therefore, the Court determines that Plaintiff failed to shift the  
burden of proof. Alternatively, the Court concludes that Defendants have raised  
triable issues of material fact about whether Defendant misrepresented contract  
scope, or whether Plaintiff’s mistake was from a lack of awareness of clearly  
expressed contractual terms. (See, e.g., Separate Statements, fact number 11  
and 14, and proof referenced thereat.)

IV.

#### CONCLUSION

The Court denies the Motion,  
for reasons set forth above.

The Court sustains Defendants’  
evidentiary objections filed on June 11, 2026.